

National Dairy Development Board Act, 1992

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National Dairy Development Board Act, 2048

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Amending Acts

1. Act Amending Some Nepal Acts, 2075 2075.1.7
2. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.1.7
3. Act Amending Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 6 of the year 2049

An Act Made to Establish and Manage the National Dairy Development Board

Preamble: Whereas it is desirable to establish and manage a National Dairy Development Board to coordinate programmes related to dairy production in the government and private sectors, to produce more milk within the country on the basis of public participation, and to maintain the health facilities of the general public,

Therefore, in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev, the Parliament has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "National Dairy Development Board Act, 2048".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Board" means the National Dairy Development Board established pursuant to Section 3.

(b) "Committee" means the Executive Committee formed pursuant to Section 7.

(c) "Chairperson" means the Chairperson of the Committee.

(d) "Member" means a member of the Committee, and this term shall also include the Chairperson, Vice-Chairperson, and Member-Secretary of the Committee.

(e) "Executive Director" means the Executive Director appointed or designated pursuant to Section 13.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the regulations made under this Act.

3. Establishment of the Board: (1) A National Dairy Development Board is established to formulate policies relating to the dairy business at the national level, to prepare development plans relating thereto, to coordinate between the private sector and the government sector, and to make the dairy production profession stronger.

(2) The office of the Board shall be located in the Kathmandu Valley. 4. Board to be a Body Corporate: (1)

The Board shall be an autonomous and corporate body with perpetual succession.

(2) The Board shall have its own separate seal for its business.

(3) The Board may, like a natural person, acquire, use, sell, or otherwise dispose of movable and immovable property.

(4) The Board may, like a natural person, sue in its own name and be sued in the same name. 5.

Objectives of the Board: The objectives of the Board shall be as follows:- (a) To provide necessary assistance to the Government of Nepal for formulating policies relating to the dairy business at the national level and for preparing development plans relating thereto. (b) To develop and cause to develop the dairy industry. (c) To identify measures to resolve problems arising in the fields of animal development and animal health for dairy development. (d) To establish and cause to establish coordination among all dairy entrepreneurs of the private and government sectors within the country. (e) To conduct and cause to conduct high-level studies and research relating to dairy development. (f) To manage and cause to manage animal grazing. 6. Functions, Duties and Powers of the Board: The functions, duties and powers of the Board shall be as follows:-

(a) To formulate policies relating to the import of necessary substances for the production and promotion of milk, milk products and animal feed, and the export of produced milk, milk products and animal feed, recommend them to the Government of Nepal, and implement or cause to implement the approved policies. (b) To formulate policies for determining the price of milk and recommend them to the Government of Nepal. (c) To provide necessary advice to the Government of Nepal for the interest of producers and consumers in relation to the dairy business. (d) To encourage or cause to encourage the development of the dairy business through cooperatives. (e) To register or cause to register dairy industries. (f) To arrange for and mobilize or cause to arrange for and mobilize necessary domestic and foreign aid, grants and loans for the dairy industry. (g) To provide or cause to provide technical assistance for the establishment, improvement, promotion and protection of the dairy industry. (h) To monitor, evaluate and review or cause to monitor, evaluate and review programmes relating to the dairy business. (i) To perform or cause to perform other necessary functions relating to the dairy industry. 7.

Formation of the Executive Committee: Amended by notice published in Nepal Gazette dated 2059.6.14.(1) There shall be an Executive Committee for the operation of the Board's functions as follows:- Amended by the Act Amending Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(a) Minister for Agriculture and Livestock Development - Chairperson Amended by the Act Amending Some Nepal Acts to Make Them Consistent with the Constitution of Nepal, 2075.(b) Secretary, Ministry of Agriculture and Livestock Development - Vice-Chairperson (c) Farmer representatives from dairy producer cooperative institutions - Four persons - Member (d) Representatives from associations of private dairy entrepreneurs - Three representatives - Member (e) Representative of the Federation of Nepalese Chambers of Commerce and Industry - One person - Member (f) Representative of the Department of Livestock Services - One person - Member (g) General Manager, Dairy Development Corporation - Member (h) Executive Director or Acting Executive Director, National Dairy Development Board - Member-Secretary (2) The Government of Nepal may, if it deems necessary, by publishing a notice in the Nepal Gazette, make necessary additions, deletions or changes to the members of the Committee. (3) The term of office of the members pursuant to clauses (c), (d), (e) and (f) of sub-section (1) shall be two years, and they may be re-nominated or re-elected. 8. Meeting of the Committee: (1) A meeting of the Committee shall be held at such date, time and place as specified by the Chairperson. (2) If at least fifty percent of the total number of members of the Committee are present, the meeting shall be deemed to have a quorum. (3) The meeting of

the Committee shall be chaired by the Chairperson, and in the absence of the Chairperson, by the Vice-Chairperson. In the absence of both the Chairperson and the Vice-Chairperson, the members shall elect one from among themselves to chair the meeting. (4) Decisions of the Committee shall be certified by the Member-Secretary. (5) Other matters relating to the meeting of the Committee shall be as determined by the Committee itself. 9. Functions, Duties and Powers of the Committee: (1) It shall be the duty of the Committee to carry out all functions to be performed by the Board, exercise the powers and discharge the duties, subject to this Act and the regulations made under this Act. (2) The Committee may delegate its powers to the Chairperson, Member, Member-Secretary or any officer of the Board as necessary. 10. May Form Sub-Committees: (1) The Committee may form sub-committees as necessary for the conduct of its work. (2) The functions, duties, powers, jurisdiction and working procedure of sub-committees shall be as specified by the Committee. 11.

Fund of the Board: (1) There shall be a separate fund of the Board. (2) The following amounts shall be kept in the fund of the Board:- (a) Grant amount received from the Government of Nepal, (b) Grant amount received from any foreign government or international organizations, (c) Amount received for providing or causing to provide research work or consultancy services relating to the dairy industry, (d) Amount received from other sources. (3) Prior approval of the Government of Nepal shall be required when accepting grants from foreign governments or international organizations. (4) All amounts received by the Board shall be deposited by opening an account in any bank within Nepal Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (5) All expenses to be incurred by the Board shall be borne from the fund pursuant to sub-section (1). 12. Accounts and Audit: (1) The accounts of income and expenditure of the Board shall be kept in accordance with the method adopted by the Government of Nepal. (2) The audit of the Board shall be carried out by the Auditor General. 13. Executive Director: (1) There shall be an Executive Director as the administrative chief of the Board. (2) The Government of Nepal may appoint or designate a suitable person to the post of Executive Director. (3) The term of office of the Executive Director shall be four years, and he/she may be re-appointed or re-designated for a maximum of four additional years. (4) The Added by the Act Amending Some Nepal Acts, 2055.functions, duties and powers, remuneration, terms of service and facilities of the Executive Director shall be as prescribed. 14. Staff of the Board: (1) The Board shall, in accordance with the regulations, appoint necessary staff for the operation of the Board's functions. (2) The remuneration, terms of service and facilities of the staff appointed pursuant to sub-section (1) shall be as specified by the Board. 15. Report to be Submitted to the Government of Nepal: The Board shall submit an annual report of its work to the Government of Nepal within six months of the end of each fiscal year. 16. Government of Nepal May Give Directions: The Government of Nepal may give necessary directions to the Board, and it shall be the duty of the Board to comply with such directions. 17.